

Court No. - 2

Case :- WRIT - C No. - 23251 of 2016

Petitioner :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Respondent :- Permanent Lok Adalat And 3 Others

Counsel for Petitioner :- Anil Kumar Mehrotra

Counsel for Respondent :- Brijesh Kumar Mishra

Hon'ble Pankaj Mithal,J.

A transformer of 100 KVA is existence. It is supplying electricity to number of consumers including the respondent no. 2, who is running a tub-well of 7.5 KVA.

Admittedly, the total load on the aforesaid transformer is of 77.5 Horse-Power (H.P.) which is equivalent to around 54 KVA.

Clause 4.2 of the U.P. Electricity Supply Code 2005 obliges the petitioners to extend the capacity of the transformer if the load increases to 80% of the installed capacity.

In the instant case the load on the existing transformer is within the existing capacity and as such it does not require to be increased or strengthened or replaced by a new transformer of a higher capacity.

In view of the above, prima facie the Permanent Lok Adalat has illegally directed to install an additional new transformer of 25 KVA for the tube-well of the respondent no. 2.

Sri Kshitij Shailendra appearing for the respondent no. 2 may file counter affidavit within a month. Two weeks thereafter is allowed to the petitioners to file rejoinder affidavit.

List and connect with Writ C No. 23246 of 2016 for admission/final disposal on the expiry of the above period.

Until further orders of this Court, the operation of the impugned award dated 12.12.2015 passed by Permanent Lok Adalat, shall remain stayed.

Order Date :- 19.5.2016

v.k.updh.